

IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Crl. Appeal No.58756 of 2023
(Muhammad Asif versus Shahnaz Akhtar, etc)

JUDGMENT

Date of hearing	26.03.2026
Appellant by:	M/s Pir Imran Akram Bodla, Hafiz Nimat Ullah and Ilyas Chaudhry, Advocates.
State by:	Mr. Muhammad Asad Tehrim Baig, DPG.
Complainant by:	Mr. Abdul Rehman Mayo, Advocate.

Sardar Akbar Ali. J:- Muhammad Asif (appellant) along with his co-accused namely Abu Sufyan *alias* Irfan and Muhammad Adeeb was tried by the learned Additional Sessions Judge, Zafarwal, District Narowal in a private complaint titled “*Shahnaz Akhtar vs. Muhammad Asif, etc*” under sections 302/ 34/ 109 PPC emanated from case FIR No.247/ 2017 dated 03.06.2017, offences under Sections 302/ 34 PPC registered at Police Station Zafarwal, District Narowal and *vide* judgment dated 25.07.2023 passed by the learned trial Court, co-accused namely Abu Sufyan *alias* Irfan and Muhammad Adeeb were acquitted of the charges whereas the appellant has been convicted and sentenced as under:

“Convicted under Section 302(b) PPC and sentenced to imprisonment for life as *Ta’zir* for committing Qatl-e-Amd of Muhammad Yaqoob (deceased) with a further direction to pay Rs.1,500,000/- as compensation under Section 544-A, Cr.P.C. to the legal heirs of the deceased, if recovered and in default whereof to further undergo simple imprisonment for six months. He was also extended the benefit of section 382-B Cr.P.C.”

2. Assailing the above-mentioned conviction and sentence, appellant Muhammad Asif filed the appeal in hand. The complainant also filed **Crl. PSLA No.62880 of 2023** which has been dismissed on 29.10.2025 as having not been pressed on the request of learned counsel for the complainant.
3. The facts of the case, as enumerated in paragraph No.03 of the impugned judgment of the learned trial Court, are that:

“”That today on 03.06.2017, her husband Muhammad Yaqoob took the cot and cattle in the field near the graveyard of Depoke which was taken on lease and melon and water melon were also cultivated there. At about 12

O'clock (noon), complainant alongwith her son Shahid and nephew Abdul Sattar were going towards the said field where her husband was already present. When they reached near the graveyard of the village, they saw that her husband was sleeping on the cot beneath the tree near the graveyard. Accused person Muhammad Asif armed with pistol 30-bore, Irfan and Muhammad Adeeb alongwith one unknown accused armed with firearm weapon came towards the cot of her husband, accused Muhammad Asif made straight fire shot with his pistol 30-bore on her husband to commit his murder which landed on above side of his left eye and blood was smeared who succumbed to the injury at the spot. The accused fled away from the crime scene. The complainant, her son and nephew witnessed the occurrence. Motive behind the occurrence was that accused Adeeb was a witness in a false case, which was registered against husband of complainant Muhammad Yaqoob in which her husband was acquitted whereas civil litigation was pending adjudication between father of accused Muhammad Asif and husband of complainant which was decided in favour of husband of complainant and due to this grudge accused persons had murdered her husband.”

4. The learned trial court after recording cursory evidence summoned all the appellant to face trial. When charge sheeted, the accused/appellant pleaded not guilty and claimed to be tried, whereupon, the prosecution examined 04 PWs and 07 CWs. On closure of prosecution case, the appellant was examined under section 342 Cr.P.C. who refuted the prosecution evidence. However, the appellant opted not to appear in the witness box as required by section 340(2) Cr.P.C. rather he tendered copy of FIR No.18/07 as (Exh.DC), copy of FIR No.253/04 as (Exh.DD) and copy of FIR No.186/03 as (Exh.DB) in his defence evidence and the trial ended in the terms as detailed in opening paragraph of this judgment.

5. Heard. Record perused.

6. This unfortunate incident wherein Muhammad Yaqoob (deceased) lost his life, as per prosecution case took place on 03.06.2017 at 12:00 p.m. in the area of Mauza Deepu within the territorial limits of Police Station Zafarwal, District Narowal and the matter was reported to the police on the same day at 01:45 p.m. with a delay of 01 hour and 45 minutes, despite the fact that police station was at a distance of just 13 kilometers from the place of occurrence. No reason much less plausible has been given by the prosecution at any stage. In the attending circumstances, the delay in reporting the matter to the Police creates many suspicions and doubts in the prosecution case particularly when eyewitnesses are closely related inter-se as well as to the deceased, in such a situation if these witnesses were present at the time and place of occurrence and also witnessed the scene of occurrence then such an inordinate and unexplained delay would never

have occurred. Reliance in this regard has been placed upon the case reported as “*Mst. Asia Bibi vs. The State*” (PLD 2019 SC 64) wherein it was held that:

“There is no cavil to the proposition, however, it is to be noted that **in absence of any plausible explanation, this Court has always considered the delay in lodging of FIR to be fatal and casts a suspicion on the prosecution story, extending the benefit of doubt to the accused.** It has been held by this Court that a FIR is always treated as a cornerstone of the prosecution case to establish guilt against those involved in a crime; thus, it has a significant role to play. **If there is any delay in lodging of a F.I.R and commencement of investigation, it gives rise to a doubt, which, of course, cannot be extended to anyone else except to the accused.** Furthermore, FIR lodged after conducting an inquiry loses its evidentiary value. [see: Iftikhar Hussain and others v. The State (2004 SCMR 1185)]. **Reliance in this behalf may also be made to the case titled as Zeeshan @ Shani v. The State (2012 SCMR 428) wherein it was held that delay of more than one hour in lodging the FIR give rise to the inference that occurrence did not take place in the manner projected by prosecution and time was consumed in making effort to give a coherent attire to prosecution case, which hardly proved successful. Such a delay is even more fatal when the police station, besides being connected with the scene of occurrence through a metaled road, was at a distance of 11 kilometers from the latter. In the case titled as Noor Muhammad v. The State (2010 SCMR 97) it was held that when the prosecution could not furnish any plausible explanation for the delay of twelve hours in lodging the FIR, which time appeared to have been spent in consultation and preparation of the case, the same was fatal to the prosecution case.**”

7. Dr. Taj Muhammad (PW-01) conducted autopsy on the dead body of Muhammad Yaqoob deceased on 03.06.2017 at 10:00 p.m. with the delay of 10 hours from the occurrence. In the Postmortem Examination Report (Exh.PA), the doctor had mentioned probable time between injuries and death was half an hour whereas between death and postmortem was 12 hours. Keeping in mind that Mst. Shahnaz Bibi, complainant (PW-03) and Muhammad Shahid (PW-04) were closely related to the deceased and also the fact that both the witnesses of ocular account are the residents of the same vicinity, in such a situation if these witnesses were present at the place of occurrence and also witnessed the scene of occurrence then such an inordinate and unexplained delay would never have occurred. So it was also a case of delayed postmortem, which casts serious doubt and the inference can be drawn that the intervening period was consumed in fabricating the prosecution story after the preliminary investigation and what happened during the intervening period which delayed the postmortem examination for about 12 hours. There is no explanation at all available on record for such delay. Such noticeable delay in post mortem examination of the dead body is generally suggestive of a real possibility that time had been consumed by the police in procuring and planting eye-witnesses before preparing police papers necessary for the

same. I may refer here the case of “Irshad Ahmed v. The State” (2011 SCMR 1190), wherein the Hon’ble Supreme Court of Pakistan has observed as under:-

“We have further observed that the post-mortem examination of the deadbody of Shehzad Ahmed deceased had been conducted with a noticeable delay and such delay is generally suggestive of a real possibility that time had been consumed by the police in procuring and planting eye-witnesses and in cooking up a story for the prosecution before preparing police papers necessary for getting a post-mortem examination of the dead body conducted.”

Similar view was also reiterated by the Hon’ble Supreme Court of Pakistan in cases titled as Muhammad Rafique alias Feeqa v. The State (2019 SCMR 1068) and “Ifthikhar alias Kharoo vs. The State (2024 SCMR 1449).

8. The entire case of the prosecution relies on the ocular account furnished by Mst. Shahnaz Akhtar, complainant (PW-03) and Muhammad Shahid (PW-04) who were widow and son of the deceased respectively. Their testimonies suffer from fatal infirmities that taint the very core of the prosecution's story. They were patently chance as well as interested witnesses, whose testimonies, in the absence of independent corroboration, are inherently suspect and must be scrutinized with extreme caution. Mst. Shahnaz Akhtar, complainant (PW-03) in complaint (Exh.PD) stated that the fire shot made by the appellant hit the deceased on the back side of his head whereas in Private Complaint (Exh.PA), she only stated that the fire shot made by the appellant hit the deceased but she had not mentioned the local of the injury and while appearing before the learned trial Court, she stated that the appellant made straight fire shot with his pistol .30 bore which hit the deceased on above side of his left eye which was an attempt on her part to keep her statement in line with the medical evidence. Likewise, Muhammad Shahid (PW-04) in his examination-in-chief also tried to keep in line his statement with the medical evidence by stating that the appellant made straight fire shot with his pistol .30 bore which hit his father/ deceased on above side of his left eye.

9. Admittedly, both these witnesses of ocular account were chance witnesses. It is very surprising that both the eyewitnesses proceeded from their destinations and straight away reached at the place of occurrence where the deceased was sleeping on a cot and immediately after their arrival, in presence of the PWs, the appellant had inflicted a fire shot upon the deceased. Was the appellant waiting for the PWs so that on their arrival,

the appellant may commit the offence and they might have become eyewitness of this case. In this regard reliance is placed on case titled “Imtiaz Hussain Shah alias Tajjay Shah and another vs. The State and others” (2025 SCMR 1110) in which it was held that:

“It seems quite improbable that the appellants were waiting for the arrival of the alleged eye-witnesses to reach the spot and then to initiate the occurrence so that they stood eye-witnesses against them.”

Furthermore, I also hold that both the above said PWs were chance witnesses. Admittedly, the testimony of chance witness ordinarily is not accepted unless justifiable reasons are shown to establish his presence at the crime scene at the relevant time. In normal course, the presumption under the law would operate about his absence from the crime spot. The testimony of chance witness may be relied upon, provided some convincing explanations appealing to a prudent mind for his presence on the crime spot are put forth, when the occurrence took place otherwise his testimony would fall within the category of suspect evidence and cannot be accepted without a pinch of salt. Reliance may be placed on the cases reported as **“Muhammad Rafique vs. The State”** (2014 SCMR 1698), **“Naveed Asghar and 2 others vs. The State”** (PLD 2021 SC 600), “Muhammad Hassan and another vs. The State and others” (2024 SCMR 1427), “Abdul Hayee and Abdullah alias Ghazali and another vs. The State and others” (2025 SCMR 281) “Shahid Ali vs. The State” (PLD 2026 Supreme Court 126) and the judgment passed by the Hon’ble Supreme Court of Pakistan in **Jail Petition No.616 of 2025** titled “Sultan alias Babo Jatoi vs. The State”

10. From the above narrations, admissions, contradictions as well as dishonest improvements of the PWs, I am also of the view that if these PWs of ocular account were present on the spot then they should not have to make dishonest improvements in their statements in such a manner to strengthen the prosecution case. The aforesaid flaws, contradictions and improvements in the statements of aforesaid PWs create doubts in the prosecution story. It is settled by now that dishonest improvements made by a witness in his statement to strengthen the prosecution case casts serious doubt about veracity of his statement and makes the same untrustworthy and unreliable. Reliance may be made to a case titled Mst. Saima Noreen and another Vs. The State (2024 SCMR 1310).

11. Moreover, Dr. Taj Muhammad (PW-01) who on 03.06.2017 conducted autopsy on the dead body of Muhammad Yaqoob, deceased stated that *“A dead body of 50 years old male, thin built and normal height lying on table, eyes closed, secretions coming out of both nostrils, mouth partially opened, rigorous mortis present.”* Liaqat Ali, Inspector (CW-03) while preparing Inquest Report (Exh.CW-3/A) in its Column No.8 mentioned that mouth of the deceased was partially opened. Keeping in mind that Mst. Shahnaz Akhtar, complainant (PW-03) and Muhammad Shahid (PW-04) who were widow and son of the deceased respectively, in such a situation if these witnesses were present at the place of occurrence and also witnessed the scene of occurrence then they should have firstly closed the mouth of the deceased, therefore, these circumstances make the presence of the ocular account at the time of occurrence doubtful. Reference in this context may be made to the case of *“Waqas Ahmad vs. The State” (2025 SCMR 1087)*.

12. So far as medical evidence is concerned, as per prosecution’s own case as set up in the FIR (Exh.PE), Muhammad Yaqoob, deceased was sleeping on a cot while keeping his head on the eastern side and when at that time, Muhammad Asif, appellant made a fire shot with his .30 bore pistol which hit the deceased on the back side of his head but Dr. Taj Muhammad (PW-01) who on 03.06.2017 conducted autopsy on the dead body of Muhammad Yaqoob, deceased observed the following injuries on his dead body:

INJURIES

1. An entry wound 0.5 cm x 0.5 cm on lateral aspect of left eye about 5 cm lateral bleeding on wound, metallic piece was in wound.
2. An exit wound 2.5 cm x 2.5 cm on back of right side of head 8 cm back to the left ear.

From the aforesaid facts and circumstances of the case, I am of the view that according to prosecution’s own case and as per statements of the eyewitnesses, the deceased received fire arm injury on the back of his head whereas the doctor had opined that the deceased had received fire arm injury on lateral aspect of left eye on front side of the face, thus, there is visible major conflict in between the ocular account and the medical evidence, which goes to the very root of the prosecution case as. Reliance is placed on judgment reported as *“MUHAMMAD IDREES and another Vs.*

The STATE and others” (2021 SCMR 612) and such contradiction also leads us to draw an inference that as a matter of fact the prosecution witnesses were not truthful in their stance, were not present at the place of occurrence at the relevant time and had not witnessed the occurrence. Guidance is sought from “Imtiaz Hussain Shah alias Tadjay Shah and another vs. The State and others”, (2025 SCMR 1110), “Muhammad Nawaz vs. The State” (2025 SCMR 1053) and “Khizar Hayat vs. The State” (2025 SCMR 1339).

13. As regards recovery of crime weapon i.e pistol .30 bore on the disclosure and pointing out of the appellant from his house is concerned, the PFSA report (Exh.PK) has been received in the positive but the fact remains that when I have already disbelieved the ocular account, such recovery would not be sufficient for recording conviction of an accused on capital charge, because this type of corroborative evidence is always taken into consideration along with direct evidence. In case titled “Noor Muhammad Versus The State” (2010 SCMR 97) it has been held by the Supreme Court of Pakistan that recovery of crime weapon even with matching report of PFSA is only corroborative piece of evidence, which by itself is not sufficient to record conviction.

14. So far as the motive part of the prosecution case is concerned, although the prosecution has alleged specific motive that the appellant and his co-accused had previously got registered a criminal case against the complainant party in which they were found innocent, therefore, due to that grudge, the appellant had committed the murder of the deceased but I have noticed that the prosecution has failed to bring on record any independent corroborative evidence either oral or documentary to establish this fact, thus, in such a scenario, I feel no hesitation to hold that the prosecution has miserably failed to prove the motive through cogent and confidence inspiring evidence.

15. As far as the defence plea taken by the appellant in his statement under Section 342, Code of Criminal Procedure is concerned, since the prosecution evidence is doubtful in nature, therefore, there is no need to discuss the same which is exculpatory in nature.

16. I have considered all the pros and cons of this case and have come to this irresistible conclusion that the prosecution could not prove its case against the appellant beyond any shadow of doubt. It is, by now well established principle of law that it is the prosecution, which has to prove its

case against the appellant by standing on its own legs and it cannot take any benefit from the weaknesses of the case of the defence. In the instant case, the prosecution remained failed to discharge its responsibility of proving the case against the appellant. It is also well established that if there is a single circumstance which creates doubt regarding the prosecution case, the same is sufficient to give benefit of doubt to the accused, whereas, the instant case is replete with number of circumstances which have created serious doubt about the prosecution story. Reliance may be placed on the case law reported as “*Muhammad Akram versus The State*” (2009 SCMR 230), “*Abdul Samad vs. State*” (2025 SCMR 639) and “*Muhammad Aslam vs. The State*” (2025 SCMR 1240).

17. For the foregoing reasons, **Criminal Appeal No.58756 of 2023** filed by Muhammad Asif (appellant) is allowed, conviction and sentence awarded to the appellant *vide* judgment dated 25.07.2023 passed by the learned trial court are set aside and he is acquitted of the charges levelled against him while extending him benefit of doubt. The appellant is in jail. He be released forthwith if not required in any other case.

(Sardar Akbar Ali)
Judge

M. Arshad

Approved for reporting.

Judge